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County: los-angeles

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Case Number: 24STCV23103 Hearing Date: August 7, 2026 Dept: 729

Superior Court of California

County of Los Angeles

DEPARTMENT

729

TENTATIVE RULING

ADRIAN

AMADO, et al.,

vs.

NICK M.

GUHO, et al.

Case No.:

24STCV23103

Hearing Date: August 7, 2026

Moving Plaintiff

Ministerios Una Voz Profetica En Las Naciones Inc.'s motion for a preliminary

injunction is denied.

Plaintiff Ministerios Una Voz Profetica En Las

Naciones Inc. ("Ministerios") ("Moving Plaintiff") moves for a preliminary injunction enjoining Defendants Nick M. Guho, Inc. (“Guho Inc.”), Brett Blazicek (“Blazicek”), and Western Fidelity Trustees (“Western Fidelity”) (collectively, “Defendants”) as well as Defendants’ agents, servants, employees, representatives, and others acting on their behalf, from foreclosing upon and conducting a trustee sale of the real properties at issue, commonly known as 8329 Atlantic Avenue, 8331 Atlantic Avenue, and 8333 Atlantic Avenue in Cudahy, California 90201 (“Property”). (Notice of Motion, pg. 2.)

Moving Plaintiff moves on the grounds that (1) Plaintiff has demonstrated a reasonable probability of prevailing on its claims for fraud, breach of contract, unlawful and unfair business practices, and declaratory relief; (2) Moving Plaintiff will suffer irreparable harm if foreclosure is permitted to proceed before the merits of this action are determined; (3) the balance of interim harms favors Moving Plaintiff; and (4) there is no adequate remedy at law. (Notice of Motion, pgs. 2-3.)

Request for Judicial Notice

Moving Plaintiff’s 6/1/26 request for judicial notice of (1) the foundational fact established by the recorded chain of title: the real properties located at 8329 Atlantic Avenue, 8331 Atlantic Avenue, and 8333 Atlantic Avenue in Cudahy, California 90201 are assigned a single Assessor Parcel Number, APN 6224-035- 040, and together comprise a single merged parcel legally described as Lots 2 and 3 in Block M of Tract No. 349, in the City of Cudahy, County of Los Angeles, State of California, as per map recorded in Book 14, Pages 194 and 195 of Maps, in the Office of the County Recorder of said County (Decl. of Amada, Exh. 3); (2) the California Department of Toxic Substances Control Hazardous Waste Tracking System Handler Profile (1990) (Decl. of Fraijo, Exh. A); (3) State Water Resources Control Board GeoTracker Case Summary, Gasoline Release (1990) (Decl. of Fraijo, Exh. B); (4) DTSC Permanent Generator Registration, Guho Building Materials Inc. (2003-2006) (Decl. of Fraijo, Exh. C); (4) LA County Fire Department Class II Violation (2004) (Decl. of Fraijo, Exh. D); (5) LA County Fire Department Complaint Investigation (2012) (Decl. of Fraijo, Exh. E), is granted.

Moving Plaintiff’s 7/31/26 request for judicial notice of the Trustee’s Deed Upon Sale recorded in the Official Records of the Recorder's Office, Los Angeles County, California, on June 22, 2026, at 8:00 AM, as Instrument No. 20260449964 (Supp. RJN, Exh. F) is granted.

Background

Moving Plaintiff and Adrian Amado ("Amado") ("Non-moving Plaintiff") (collectively, "Plaintiffs") filed their initial Complaint on September 6, 2024. (See Complaint.) On November 12, 2024, Plaintiff filed a DOE Amendment, naming Blazicek as DOE 1.

Plaintiffs filed the operative first amended complaint ("FAC") on November 13, 2024, against Defendants Guho Inc. and Nick M. Guho ("Guho") (collectively, "Defendants") for four causes of action: (1) fraud; (2) breach of contract; (3) unlawful and unfair business practices §§17200; and (4) declaratory relief (with request for temporary, preliminary, and/or permanent injunctive relief).

On July 8, 2025, Plaintiff filed a DOE Amendment, naming Western Fidelity as DOE 2.

Plaintiff filed the instant motion on June 1, 2026. Defendant Guho Inc. filed its opposition on July 27, 2026. Plaintiff filed its reply on July 31, 2026.

Legal Standard

The purpose of a preliminary injunction is to preserve the status quo pending final judgment in the case. (See Scaringe v. J.C.C. Enterprises, Inc. (1988) 205 Cal.App.3d 1536.) The status quo has been defined to mean the last actual peaceable, uncontested status which preceded the pending controversy. (Voorhies v. Greene (1983) 139 Cal.App.3d 989, 995, quoting United Railroads v. Superior Court (1916) 172 Cal. 80, 87.)

In determining whether to issue a preliminary injunction, the trial court considers two factors: (1) the reasonable probability that the plaintiff will prevail on the merits at trial; and (2) a balancing of the "irreparable harm" that the plaintiff is likely to sustain if the injunction is denied compared to the harm that the defendant is likely to suffer if the court grants a preliminary injunction. (C.C.P. §526(a); 14859 Moorpark Homeowner's Association v. VRT Corp. (1998) 63 Cal.App.4th 1396, 1402; Pillsbury, Madison & Sutro v. Schectman (1997) 55 Cal.App.4th 1279, 1283.)

The Court's determination is guided by a "mix" of the potential-merit and interim-harm factors; the greater the plaintiff's showing on one, the less must be shown on the other to support an injunction. (Butt v. State of California (1992) 4 Cal.4th 668, 678.) However, a trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim. (Id.)

The court must consider both factors. The two factors are a sliding scale— the stronger the showing of probability of prevailing, the lesser showing is required for irreparable harm. (Id.; The Right Side Coalition v. Los Angeles Unified School District (2008) 160 Cal.App.4th 336 [reversing denial of preliminary injunction based solely on balancing of hardships without considering probability of prevailing].) The plaintiff must make some showing of each factor. (Jessen v. Keystone Savings & Loan Association (1983) 142 Cal.App.3d 454, 459.) A court may not issue a preliminary injunction if the plaintiff cannot possibly prevail on the merits even if a strong showing of irreparable harm has been made. (Butt, 4 Cal.4th at pgs. 677-678.)

On the first factor, a preliminary injunction may not issue unless the judge is persuaded that it is "reasonably probable" that the plaintiff will prevail on the merits. (San Francisco Newspaper Printing Co. v. Superior Court (1985) 170 Cal.App.3d 438, 442.) The judge does not determine the merits of the action or decide that the plaintiff necessarily will prevail. The judge only determines whether there is a reasonable probability that the plaintiff will prevail. (Youngblood v. Wilcox (1989) 207 Cal.App.3d 1368, 1372.)

For the second factor, "irreparable harm" means that the defendant's act constitutes an actual or threatened injury to the personal or property rights of the plaintiff that cannot be compensated by a damages award. (Brownfield v. Daniel Freeman Marina Hospital (1989) 208 Cal.App.3d 405, 410.) A plaintiff is not required to wait until suffering actual harm; threatened harm is enough. (Southern Christian Leadership Conference v. Al Malaikah Auditorium Co. (1991) 230 Cal.App.3d 207, 223.)

The issue of irreparable harm is closely related to the issue of damages as an adequate remedy at law. Monetary loss will not constitute irreparable harm unless the plaintiff also shows that the defendant is insolvent or unable to pay damages. (Friedman v Friedman (1993) 20 Cal.App.4th 876, 890.) While both residential and commercial real property are considered unique for purposes of irreparable harm (see Civ. Code §3387), damages may adequately compensate property owned for investment property which has an established value, and the foreclosing entity is solvent. (Jessen, 142 Cal.App.3d at pg. 458.) Where the owner intends to use the investment property and not simply sell it, money damages may not suffice, and irreparable harm may justify injunctive relief. (Id.)

The showing must demonstrate the specific harm claimed; mere allegations of irreparable injury are insufficient. (Leach v. City of San Marcos (1989) 213 Cal.App.3d 648, 661 [“A mere allegation that such injury will result is not sufficient”.]) Conclusory statements, lay opinion, and attorney declarations will not suffice.
The irreparable harm must be imminent; a mere possibility or fear of harm is insufficient. (Korean Philadelphia Presbyterian Church v. California Presbytery (2000) 77 Cal.App.4th 1069, 1084.) The court’s ruling on a preliminary injunction is not an adjudication of the merits, is not a trial, and does not require a statement of decision. (Cohen v. Board of Supervisors, (1985) 40 Cal.3d 277, 286; People v. Landlords Professional Services, Inc., (1986) 178 Cal.App.3d 68, 70-71.) The Court is not required to state its reasons for granting or denying a preliminary injunction; a cursory statement is sufficient. (City of Los Altos v. Barnes (1992) 3 Cal.App.4th 1193, 1198.)

Discussion

Moving Plaintiff demonstrates it has a reasonable likelihood of success on the merits of its claims. Plaintiffs assert four causes of action: (1) fraud; (2) breach of contract; (3) unlawful and unfair business practices §§17200; and (4) declaratory relief (with request for temporary, preliminary, and/or permanent injunctive relief). Moving Plaintiff only moves in this motion on the basis of its fraud cause of action, presumably in light of the fact that the fraud cause of action is the basis for the other three causes of action. Therefore, the Court only examines the first cause of action for fraud.

1. Likelihood of Success

a. Fraudulent Concealment

A cause of action for fraudulent concealment must allege the following elements: (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) the plaintiff sustained damage as a result of the concealment or suppression of the material fact. (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40.)

“A duty to speak may arise in four ways: it may be directly imposed by statute or other prescriptive law; it may be voluntarily assumed by contractual undertaking; it may arise as an incident of a relationship between the defendant and the plaintiff; and it may arise as a result of other conduct by the defendant that makes it wrongful for him to remain silent.” (SCC Acquisitions, Inc. v. Central Pacific Bank (2012) 207 Cal.App.4th 859, 860.)

However, in transactions that do not involve fiduciary or confidential relations, a duty to disclose material facts may arise in at least three instances: (1) the defendant makes representations but does not disclose facts that materially qualify the facts disclosed, or that render his disclosure likely to mislead; (2) the facts are known or accessible only to defendant, and defendant knows they are not known to or reasonably discoverable by the plaintiff; (3) the defendant actively conceals discovery from the plaintiff. (See Warner Constr. Corp. v. L.A. (1970) 2 Cal.3d 285, 294.)

Here,

Moving Plaintiff is likely to succeed on its cause of action for fraudulent concealment because Moving Plaintiff demonstrates that Defendant Guho Inc., the seller of the Property to Moving Plaintiff (Decl. of Amado ¶¶24-26, Exhs. 3-5) had knowledge of hazardous waste contamination at the Property. Specifically, Moving Plaintiff presents evidence that Defendants were registered hazardous waste generators. The April 18, 2003, DTSC notification letter for EPA ID Number CAL000269278, addressed to John Guho, Pres., Guho Building Materials Inc., 8331 Atlantic Avenue, states: PERMANENT RECORD – DO NOT DESTROY, and instructs that this EPA ID number must be used for all manifesting, record keeping, and reporting requirements. (Decl. of Fraijo ¶23, Exh. C.)

Further, a gasoline release discovered on December 12, 1990, during tank closure activities at the Property (Decl. of Fraijo ¶17, Exh. B) triggered a formal multi-agency State Water Board investigation with named caseworkers from the LA County DPW and RWQCB, which was more than likely to have involved the knowledge of the owner of the Property, Guho Inc.

Based on this evidence, Moving Plaintiff is likely to prevail on its cause of action against Defendant Guho Inc. on the basis that Defendant had a duty to disclose this information to Moving Plaintiff because Defendant Guho Inc. knew something the Moving Defendant did not and could not reasonably discover regarding hazardous waste contamination at the Property.

2. Balancing of Harm

Plaintiff moves for a preliminary injunction barring Defendants from foreclosing upon and conducting a trustee sale of the real properties at 8329-8333 Atlantic Avenue in Cudahy, California. The general purpose of an injunction is the preservation of the status quo until a final determination of the merits of the action. (Continental Baking Co. v. Katz (1968) 68 Cal.2d 512, 528.) Unfortunately for Plaintiffs, that trustee sale occurred on June 18, 2026, when the Property was sold by Western Fidelity to Guho Inc. in a Trustee's sale. (Supp. RJN, Exh. F.) Therefore, the pending Motion seeks to enjoin a trustee's sale of the Property that has already occurred; the motion is moot. A matter becomes moot when a court ruling cannot provide the parties with effective relief. (Downtown Palo Alto Com. for Fair Assessment v. City Council (1986) 180 Cal.App.3d 384, 391 [noting ruling by appellate court cannot provide effectual relief since dissolution of improvement district by City rendered moot the issues presented on appeal]; see also Finnie v. Town of Tiburon (1988) 199 Cal.App.3d 1, 10-11 [dismissing appeal regarding a preliminary injunction as moot because the municipal election sought to be enjoined had already occurred].)

In Moving Plaintiff's reply, it argues that the instant motion is not moot because the purchaser at that foreclosure sale was Defendant Guho, Inc. and not a third party. Moving Plaintiff argues that because Guho Inc. still holds title, this Court retains full power to grant effective relief to stop Guho, Inc. from transferring the property to a third party, and therefore the motion is not moot. (Reply, pg. 2.) Moving Plaintiff's argument is unavailing. This motion seeks to enjoin the trustee's sale, not a transfer by any purchaser at the trustee's sale. Moving Plaintiff further concedes that the original relief sought is no longer available.

Moreover, Plaintiff fails to demonstrate irreparable harm. A showing of irreparable harm must demonstrate the specific harm claimed; mere allegations of irreparable injury are insufficient. (Leach v. City of San Marcos (1989) 213 Cal.App.3d 648, 661 ["A mere allegation that such injury will result is not sufficient".]) Conclusory statements, lay opinion, and attorney declarations will not suffice. The irreparable harm must be imminent; a mere possibility or fear of harm is insufficient. (Korean Philadelphia Presbyterian Church v. California Presbytery (2000) 77 Cal.App.4th 1069, 1084.) Moving Plaintiff merely speculates in its reply that "If Guho conveys to a third party who can claim bona fide purchaser status, Plaintiff's ability to recover its church home collapses into a damages claim against a corporation that has just demonstrated how quickly it can move assets." (Reply, pg. 4.) Plaintiff has not demonstrated that a damages claim is inadequate, for example by establishing that the defendant is insolvent or unable to pay damages. (Friedman v Friedman (1993) 20 Cal.App.4th 876, 890.)

Accordingly, Moving Plaintiff's motion for preliminary injunction is denied.

Conclusion

Moving Plaintiff’s motion for a preliminary injunction is denied.

Moving Party to give notice.

Dated:
August _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court